SOFTWARE SERVICES AND PLATFORM AGREEMENT

(FICTIONAL SPECIMEN AGREEMENT — FOR SOFTWARE TESTING AND ILLUSTRATIVE PURPOSES ONLY)

This document does not reflect any real transaction, party, or negotiated terms.

This Software Services and Platform Agreement ("Agreement") is entered into as of March 3, 2025 (the "Effective Date"), by and between:

Northstar Analytics Pvt. Ltd., a company incorporated under the laws of India, having its registered office at 4th Floor, Ridgeview Business Park, Bengaluru, Karnataka, India ("Service Provider" or "Northstar"); and

Meridian Retail Solutions Pvt. Ltd., a company incorporated under the laws of India, having its registered office at Tower B, Lakeview Commercial Complex, Pune, Maharashtra, India ("Customer" or "Meridian").

Service Provider and Customer may each be referred to individually as a "Party" and collectively as the "Parties."

The initial term of this Agreement shall commence on the Effective Date and continue for a period of thirty-six (36) months (the "Initial Term"), unless earlier terminated in accordance with Section 13, and shall thereafter be subject to renewal as set forth in Section 14.

1. DEFINITIONS

1.1 "Services"

means the data analytics, dashboarding, and cloud-hosted retail intelligence platform services made available by Northstar to Customer under this Agreement, as further described in the applicable Statement of Work ("SOW").

1.2 "Platform"

means Northstar's proprietary software-as-a-service application, including all underlying source code, algorithms, models, user interfaces, and documentation made available to Customer.

1.3 "Customer Data"

means data, files, and information uploaded, submitted, or transmitted by Customer or its authorized users to the Platform in the course of using the Services.

1.4 "Confidential Information"

means non-public information disclosed by one Party to the other in connection with this Agreement, whether disclosed orally, in writing, or by inspection of tangible or electronic materials.

1.5 "Authorized Users"

means employees, contractors, and agents of Customer who are authorized by Customer to access and use the Services.

1.6 "Fees"

means the amounts payable by Customer to Northstar for the Services, as set out in Section 4 and the applicable SOW.

2. SCOPE OF SERVICES

2.1 Provision of Services.

Northstar shall use commercially reasonable efforts to make the Services available to Customer in accordance with this Agreement and the applicable SOW. Specific deliverables, timelines, and functional specifications shall be set out in one or more SOWs executed by the Parties from time to time.

2.2 General Standard.

Northstar shall provide the Services in a manner generally consistent with prevailing industry practice, subject to the understanding that platform features, workflows, and reporting formats may be adjusted by Northstar from time to time as part of its ordinary product development activities, and such adjustments shall not, by themselves, be deemed a breach of this Agreement.

2.3 Support.

Northstar shall provide reasonable email-based support during its standard business hours. Specific response and resolution times, if any, may be set out in a separate support addendum, and in the absence of such an addendum no specific service levels shall apply.

2.4 Third-Party Components.

The Platform may incorporate third-party software components. Northstar shall pass through any applicable third-party warranties to the extent permitted by the relevant third-party licensor.

3. CUSTOMER OBLIGATIONS

3.1 Lawful Use.

Customer shall use the Services only for lawful business purposes and in accordance with this Agreement, applicable documentation, and any usage policies notified by Northstar.

3.2 Account Security.

Customer is responsible for maintaining the confidentiality of Authorized User credentials and for all activities that occur under its accounts.

3.3 Accurate Information.

Customer shall provide accurate and current information as reasonably required for Northstar to perform the Services.

3.4 Cooperation.

Customer shall provide timely access to personnel, systems, and data reasonably necessary for Northstar to deliver the Services, and acknowledges that delays in providing such cooperation may affect delivery timelines.

4. FEES AND PAYMENT

4.1 Fees.

Customer shall pay the Fees set out in the applicable SOW. Unless otherwise specified, Fees are quoted in Indian Rupees and are exclusive of applicable taxes, which shall be borne by Customer.

4.2 Invoicing.

Northstar shall invoice Customer on a quarterly basis in advance. Customer shall pay all undisputed invoices within ninety (90) days of the invoice date.

4.3 Late Payment.

Any amount not paid by the due date shall accrue interest at the rate of 3% per month (or part thereof) on the outstanding balance, compounded monthly, until paid in full, together with all reasonable costs of collection incurred by Northstar, including legal fees. Northstar reserves the right to suspend or restrict access to the Services in the event of any overdue payment, without further notice.

4.4 Fee Changes.

Northstar may revise the Fees applicable to the Services, including during the Initial Term, by providing written notice to Customer. Any such revision shall take effect thirty (30) days after notice is given and shall apply to subsequent invoicing periods, and Customer's continued use of the Services following such notice shall constitute acceptance of the revised Fees.

4.5 Taxes.

Customer shall be responsible for all sales, use, value-added, goods and services, and similar taxes associated with the Services, other than taxes based on Northstar's net income.

5. INTELLECTUAL PROPERTY

5.1 Platform IP.

As between the Parties, Northstar retains all right, title, and interest in and to the Platform, including all underlying software, algorithms, and documentation, together with all intellectual property rights therein.

5.2 Customer Data License.

Customer grants Northstar a worldwide, royalty-free license to use, reproduce, and process Customer Data for the purpose of providing the Services.

5.3 Derived Outputs and Improvements.

Notwithstanding Section 5.2, any analyses, insights, aggregated datasets, reports, configurations, workflow designs, or other outputs generated in the course of delivering the Services ("Derived Outputs"), including those generated using or informed by Customer Data or Customer's business processes, shall be owned exclusively by Northstar and may be used, adapted, and commercialized by Northstar without restriction or compensation to Customer, including for the benefit of other Northstar customers.

5.4 Feedback.

Any suggestions, ideas, or feedback provided by Customer regarding the Services may be used by Northstar for any purpose without obligation to Customer.

6. CONFIDENTIALITY

6.1 Obligations.

Each Party shall use the other Party's Confidential Information solely for purposes of this Agreement and shall protect it using a reasonable degree of care.

6.2 Exclusions.

Confidentiality obligations shall not apply to information that is or becomes publicly available through no fault of the receiving Party, was already known to the receiving Party, or is independently developed.

6.3 Internal Sharing.

Each Party may disclose the other Party's Confidential Information to its affiliates, prospective investors, and prospective acquirers on a need-to-know basis, and to its professional advisors, provided that such recipients are subject to confidentiality obligations no less protective than a general duty of confidence customary in such relationships.

6.4 No Marking Requirement.

Confidential Information need not be marked or identified as confidential at the time of disclosure to be treated as such under this Agreement, provided the information would reasonably be understood to be confidential given its nature and the circumstances of disclosure.

7. DATA PROTECTION

7.1 Processing of Customer Data.

Northstar shall process Customer Data in connection with providing the Services and in accordance with applicable data protection laws.

7.2 Analytics and Product Improvement.

In addition to the license granted under Section 5.2, Northstar may use Customer Data, including in de-identified or aggregated form, to develop, train, and improve its products, algorithms, and machine learning models, to develop new features, and to produce benchmarking and industry-trend reports, and such uses and any resulting models or reports may continue after termination of this Agreement.

7.3 Security Measures.

Northstar shall maintain administrative, technical, and physical safeguards designed to protect Customer Data consistent with generally accepted industry standards.

7.4 Data Return or Deletion.

Upon written request made within thirty (30) days following termination, Northstar shall make Customer Data available for export in a standard format. Absent such a request, Northstar may delete Customer Data in accordance with its standard data retention practices.

8. WARRANTIES

8.1 Mutual Authority Warranty.

Each Party represents and warrants that it has the requisite corporate power and authority to enter into and perform this Agreement.

8.2 Service Warranty.

Northstar warrants that the Services will be performed in a professional manner. This warranty shall not apply to issues arising from misuse of the Platform, unauthorized modifications, or Customer's failure to follow documentation.

8.3 Disclaimer.

EXCEPT AS EXPRESSLY SET OUT IN THIS SECTION 8, THE SERVICES AND PLATFORM ARE PROVIDED "AS IS," AND NORTHSTAR DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

9. INDEMNIFICATION

9.1 Indemnification by Customer.

Customer shall defend, indemnify, and hold harmless Northstar, its affiliates, and their respective officers, directors, employees, and agents from and against any and all claims, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or in any way related to: (a) Customer's use of the Services; (b) Customer Data; (c) Customer's breach of this Agreement; or (d) Customer's violation of any applicable law or third-party right, regardless of whether such claim also arises from or is contributed to by any act or omission of Northstar.

9.2 Indemnification by Northstar.

Northstar shall indemnify Customer against direct third-party claims that the unmodified Platform, as used in accordance with this Agreement, infringes a valid Indian patent or copyright, subject to the limitations of liability in Section 10 and provided Customer promptly notifies Northstar of any such claim.

9.3 Procedure.

The indemnifying party's obligations under this Section 9 are conditioned on the indemnified party providing prompt written notice of the claim; provided that a delay in notice shall not relieve the indemnifying party of its obligations except to the extent it is materially prejudiced thereby.

10. LIMITATION OF LIABILITY

10.1 Cap on Northstar Liability.

EXCEPT FOR CUSTOMER'S PAYMENT OBLIGATIONS AND CUSTOMER'S INDEMNIFICATION OBLIGATIONS UNDER SECTION 9.1, IN NO EVENT SHALL NORTHSTAR'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED THE FEES PAID BY CUSTOMER IN THE THREE (3) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.

10.2 Customer Liability.

THE LIMITATION SET FORTH IN SECTION 10.1 SHALL NOT APPLY TO CUSTOMER, AND CUSTOMER'S LIABILITY TO NORTHSTAR UNDER THIS AGREEMENT, INCLUDING UNDER SECTION 9.1, SHALL BE UNCAPPED.

10.3 Exclusion of Consequential Damages.

EXCEPT WITH RESPECT TO CUSTOMER'S OBLIGATIONS UNDER SECTION 9.1, NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS OR LOSS OF DATA, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

11. FORCE MAJEURE

11.1 General.

Neither Party shall be liable for any delay or failure to perform its obligations (other than payment obligations) resulting from causes beyond its reasonable control, including acts of God, natural disasters, war, terrorism, labor disputes, internet or utility failures, or governmental action.

11.2 Notice and Mitigation.

The affected Party shall promptly notify the other Party of the force majeure event and shall use reasonable efforts to mitigate its effects and resume performance as soon as reasonably practicable.

12. NOTICES

12.1 Method.

All notices under this Agreement shall be in writing and delivered by email with confirmation of receipt, or by courier, to the addresses set out above or such other address as a Party may designate in writing.

12.2 Effectiveness.

Notices shall be deemed effective upon confirmed receipt, or, in the case of courier delivery, three (3) business days after dispatch.

13. TERMINATION

13.1 Termination for Convenience by Northstar.

Northstar may terminate this Agreement, or suspend Customer's access to the Services, at any time and for any reason or no reason, by providing written notice to Customer, and such termination shall become effective immediately upon the date specified in the notice.

13.2 Termination for Convenience by Customer.

Customer may terminate this Agreement for convenience only upon the expiry of the then-current Term, by providing written notice of non-renewal in accordance with Section 14.

13.3 Termination for Cause.

Either Party may terminate this Agreement if the other Party commits a material breach of this Agreement; provided that, in the case of a breach by Customer of its payment obligations under Section 4, Northstar may terminate immediately and without any opportunity to cure.

13.4 Effect of Termination.

Upon termination of this Agreement for any reason, all Fees for the remainder of the then-current Term shall become immediately due and payable, and Customer shall not be entitled to any refund of Fees previously paid.

14. RENEWAL

14.1 Automatic Renewal.

This Agreement shall automatically renew for successive twelve (12) month periods (each, a "Renewal Term") unless either Party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current Term.

14.2 Cancellation Procedure.

Any notice of non-renewal by Customer must be submitted in writing to Northstar's designated legal notices address (and not to the Customer's usual account representative) and must be signed by an authorized officer of Customer. Notices of non-renewal submitted by any other means, including email to Customer's account manager, shall not be effective. Failure to strictly comply with this Section 14.2 shall result in automatic renewal for a further Renewal Term at the Fees then in effect.

15. RESTRICTIVE COVENANTS

15.1 Non-Solicitation.

During the Term and for a period of twenty-four (24) months thereafter, Customer shall not, directly or indirectly, solicit for hire any employee or contractor of Northstar who was involved in the delivery of the Services.

15.2 Non-Compete.

During the Term and for a period of eighteen (18) months following termination or expiry of this Agreement for any reason, Customer shall not engage, anywhere in India, the services of any business offering retail analytics services substantially similar to the Services, whether as a customer, investor, advisor, or otherwise.

16. DISPUTE RESOLUTION

16.1 Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of India.

16.2 Arbitration.

Any dispute arising out of or in connection with this Agreement shall be referred to and finally resolved by arbitration administered by an arbitrator appointed solely by Northstar, seated in Bengaluru, Karnataka, and conducted in the English language. The arbitrator's fees and administrative costs shall be borne equally by the Parties, and each Party shall bear its own legal costs, except that Northstar may recover its legal costs in full from Customer if Northstar prevails on any claim.

16.3 Exclusive Jurisdiction.

Subject to Section 16.2, the courts at Bengaluru, Karnataka shall have exclusive jurisdiction over any matter not subject to arbitration, and Customer submits to such jurisdiction irrespective of Customer's place of incorporation or operations.

17. MISCELLANEOUS PROVISIONS

17.1 Entire Agreement.

This Agreement, together with all SOWs and exhibits referenced herein, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions, negotiations, and agreements, whether written or oral.

17.2 Amendment.

Northstar may amend or update the terms of this Agreement, including by posting revised terms on its website or otherwise notifying Customer in writing. Any such amendment shall become effective thirty (30) days after notice, and Customer's continued use of the Services thereafter shall constitute Customer's acceptance of the amended terms. No amendment proposed by Customer shall be effective unless agreed to in writing by an authorized signatory of Northstar.

17.3 Assignment.

Northstar may assign this Agreement, in whole or in part, to any affiliate or in connection with a merger, acquisition, or sale of assets, without Customer's consent. Customer may not assign this Agreement without Northstar's prior written consent, which may be withheld in Northstar's sole discretion.

17.4 Severability.

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

17.5 Survival.

In addition to any provision which by its nature should survive, Sections 4 (Fees and Payment, with respect to amounts accrued or accruable), 5 (Intellectual Property), 6 (Confidentiality), 7.2 (Analytics and Product Improvement), 9 (Indemnification), 10 (Limitation of Liability), 13.4 (Effect of Termination), 15 (Restrictive Covenants), and 16 (Dispute Resolution) shall survive termination or expiry of this Agreement indefinitely and without limitation as to time.

17.6 Independent Contractors.

The Parties are independent contractors, and nothing in this Agreement shall be construed to create a partnership, joint venture, or agency relationship.

17.7 Counterparts.

This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

For Northstar Analytics Pvt. Ltd.

Name: Aravind Menon

Title: Chief Executive Officer

Date: _____

For Meridian Retail Solutions Pvt. Ltd.

Name: Priya Raghunathan

Title: Chief Operating Officer

Date: _____